

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fendley	Team: Squad #05	CCRB Case #: 201503521	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 05/04/2015 1:30 PM	Location of Incident: Third Avenue and East 149th Street	18 Mo. SOL 11/4/2016	Precinct: 40		
Date/Time CV Reported Mon, 05/04/2015 4:02 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/04/2015 4:02 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Pando	17640	952087	PSA 7
2. POM Yahkeem Allah	11719	948604	PSA 7

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Pando	Abuse: PO Michael Pando searched § 87(2)(b)	A . Unsubstantiated
B . POM Michael Pando	Discourtesy: PO Michael Pando spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . POM Michael Pando	Abuse: PO Michael Pando threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . POM Yahkeem Allah	Abuse: PO Yahkeem Allah refused to provide his shield number to § 87(2)(b)	D . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint via telephone with the CCRB on May 4, 2015. On May 4, 2015, at approximately 1:30 p.m., § 87(2)(b) was approached by PO Michael Pando and PO Yahkeem Allah, both of PSA 7, in the vicinity of 3rd Avenue between 148th Street and 149th Street in the Bronx. § 87(2)(b) alleged that PO Pando immediately reached into his two front sweater pockets and front and back pants pockets, removing his wallet (**Allegation A**). § 87(2)(b) also alleged that, during the search, PO Pando told him to “shut the fuck up,” “stay fucking quiet” and not to “fucking move” (**Allegation B**). § 87(2)(b) was subsequently handcuffed because PO Pando recovered a narcotic called suboxone. Once handcuffed, § 87(2)(b) refused to get into the police vehicle and he alleged that PO Pando told him that if he did not get into the police vehicle PO Pando would throw him into the “fucking” car (**Allegation C**). § 87(2)(b) was transported to the stationhouse and once there, § 87(2)(b) asked PO Allah for his and his partner’s names and shield numbers. He alleged that PO Allah provided the names verbally, but did not state the shield numbers (**Allegation D**). § 87(2)(b) s arrest was for § 87(2)(a) 160.50 (Board Review 1).

Mediation, Civil and Criminal Histories

Mediation was not presented to § 87(2)(b) § 87(2)(g). A notice of claim was pending at the time this closing report was submitted because the 90-day filing expiration deadline had not yet passed. The results will be added to the case file upon receipt. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

PO Pando has been a member of the service for three years and this is the first complaint filed against him. PO Allah has been a member of the service for four years and there are two substantiated allegations against him. In CCRB case 201207175, allegations of a stop and a frisk were substantiated against PO Allah. The case went to a DCT trial and he was found not guilty for the stop and found guilty for the frisk. § 87(2)(g). This is the first complaint filed by § 87(2)(b) (Board Review 3).

Potential Issues

§ 87(2)(b) said that there was a male, known only to him as § 87(2)(b) who witnessed a portion of the incident. However, multiple contact attempts to § 87(2)(b) were negative for § 87(2)(b) last name and contact information. Therefore, § 87(2)(b) was not able to be interviewed for this incident.

Investigative Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A – Abuse of Authority: PO Michael Pando searched § 87(2)(b)

§ 87(2)(b) said that he was walking on 3rd Avenue between 148th Street and 149th Street with a friend known only to him as § 87(2)(b) when he was approached by PO Pando. At

the same time, § 87(2)(b) was approached by PO Allah. § 87(2)(b) alleged that PO Pando immediately reached into his right sweater pocket, where two cigarettes were located. PO Pando did not remove them and searched § 87(2)(b)'s front pants pockets and then back pants pockets. § 87(2)(b) alleged that PO Pando removed his wallet from his back, right pants pocket, opened it and removed his suboxone, which was not visible prior to PO Pando's approach. PO Pando then handcuffed § 87(2)(b).

PO Pando said that he stopped § 87(2)(b) because he saw § 87(2)(b) holding an aluminum package, clearly labeled as suboxone, in plain view in his hand. PO Pando thought that PO Allah initially approached another unidentified male. However, PO Allah did not recall any other males being present at the incident location. PO Allah said that he did not observe § 87(2)(b) holding suboxone at the beginning of the incident. However, PO Allah said that he did observe PO Pando take a package of suboxone out of § 87(2)(b)'s hand prior to handcuffing him. PO Allah did not recall if narcotics were recovered from § 87(2)(b)'s wallet, but he did not see PO Pando reach into any of § 87(2)(b)'s pockets.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Discourtesy: PO Michael Pando spoke rudely to § 87(2)(b)

Allegation C – Abuse of Authority: PO Michael Pando threatened § 87(2)(b) with the use of force.

Allegation D – Abuse of Authority: PO Yahkeem Allah refused to provide his shield number to § 87(2)(b)

§ 87(2)(b) said that during PO Pando's search of him, he asked why he had been stopped. In response, PO Pando told § 87(2)(b) to "shut the fuck up," stay "fucking" quiet and not to "fucking" move. PO Pando then handcuffed § 87(2)(b). § 87(2)(b) thought that his handcuffs were too tight and he requested that PO Pando loosen them before he got into the back of the police vehicle. PO Pando told § 87(2)(b) to "stop playing games," to "shut the fuck up" and said that if § 87(2)(b) did not get into the vehicle he would throw § 87(2)(b) into the "fucking" car. § 87(2)(b) asked PO Pando what was wrong with him, asked why he cursed and said that he had done nothing wrong. PO Pando eventually loosened § 87(2)(b)'s handcuffs. § 87(2)(b) got into the police car and was transported to the stationhouse. At the stationhouse, § 87(2)(b) asked PO Allah for his and PO Pando's badge numbers and last names. However, PO Allah only said the last names, did not say the shield numbers, and then walked away.

PO Pando and PO Allah both denied that PO Pando used any profanity or threatened to throw § 87(2)(b) into their police vehicle. Neither officer recalled § 87(2)(b) complaining that his handcuffs were too tight and both officers said that there were no issues in getting § 87(2)(b) into the police vehicle. Later in the afternoon, § 87(2)(b) was released from the stationhouse with a desk appearance ticket. At no point did PO Pando and PO Allah refuse to provide their shield numbers to § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegations B, C and D** be closed as **unsubstantiated**.

Pod: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date